24STCV33339 24STCV33339

County: los-angeles

Division: Civil Law and Motion

Department: 511

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Case Number: 24STCV33339 Hearing Date: July 9, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.
Kalra, Department 511

HEARING DATE: July
9, 2026

CASE NAME: Ramon
Camacho v. FCA US, LLC, et al.

CASE NO.: 24STCV33339

MOTION
FOR JUDGMENT ON THE PLEADINGS

MOVING PARTY: Defendant
FCA US, LLC

RESPONDING PARTY(S): None

REQUESTED RELIEF:

1. An
order granting judgment on the pleadings in favor of Defendant FCA US, LLC on
the sixth cause of action for fraudulent inducement – concealment.

TENTATIVE RULING:

1. Motion
for judgment on the pleadings is GRANTED;

2. Plaintiff
shall file their amended pleading within 14 days of this ruling.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On December 17, 2024, Plaintiff Ramon Camacho (Plaintiff) filed a complaint against Defendants FCA US, LLC (FCA) and Chrysler Dodge Jeep Ram (Chrysler) (sometimes collectively Defendants) with causes of action for: (1) violation of Civ. Code § 1793.2(d) [against FCA]; (2) violation of Civ. Code § 1793.2(b) [against FCA]; (3) violation of Civ. Code 1793.2(a)(3) [against FCA]; (4) breach of the implied warranty of merchantability [against FCA]; (5) negligent repair [against Defendant Chrysler]; (6) fraudulent inducement-concealment [against FCA]

Plaintiff purchased a 2018 Jeep Compass equipped with a 2.4L engine that allegedly contained latent engine, transmission, and electrical defects that substantially impaired the vehicle's use, value, and safety. Plaintiff alleges FCA knew of these engine defects—including stalling, loss of power, misfires, and risk of non-collision fire—through internal testing, warranty data, and consumer complaints but failed to disclose them at sale. Despite multiple repair attempts, the defects persisted, FCA did not provide restitution or replacement as required, and Plaintiff asserts he would not have purchased the vehicle had the defects been disclosed.

On February 19, 2025, FCA filed an answer.

On March 10, 2025, Chrysler filed an answer.

On September 12, 2025, the parties filed a stipulation and protective order – confidential designation only – which the court GRANTED.

On April 29, 2026, FCA filed the instant motion for judgment on the pleadings. Oppositions were due on or before June 25, 2026. As of July 6, 2026, the court has not received any opposition.

LEGAL STANDARD:

Judgment on the
Pleadings¿¿¿

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A defendant may move for judgment on the pleadings if (i) the court does not have¿jurisdiction¿of the subject of the cause of action alleged in the complaint, or (ii) the complaint does not¿state¿facts sufficient to constitute a cause of action alleged in the complaint. (Cal. Code Civ. Proc. (CCP) § 438(b)(2), and subd. (c).) “The standard of review for a motion for judgment on the pleadings is the same as that for a general demurrer: We treat the pleadings as admitting¿all of¿the material facts properly pleaded, but not any contentions, deductions or conclusions of fact or law¿contained¿therein. We may also consider matters subject to judicial notice.” (Dunn v. County of Santa Barbara¿(2006) 135 Cal. App. 4th 1281, 1298.)¿¿¿¿¿¿

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The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters.¿ (CCP¿§ 430.30(a);¿Blank v. Kirwan¿(1985) 39 Cal. 3d 311, 318.) A demurrer for sufficiency tests whether the complaint¿states¿a cause of action. (Hahn v.¿Mirda¿(2007) 147 Cal.App.4th 740, 747.) The only issue involved in a demurrer hearing is whether the complaint¿states¿a cause of action. (Ibid.)¿¿¿¿¿¿

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A demurrer assumes the truth of all factual, material allegations properly pled in the challenged pleading. (Blank v. Kirwan, supra,¿39 Cal. 3d at p. 318.) No matter how unlikely or improbable, the plaintiff’s allegations must be accepted as true for the purpose of ruling on the demurrer. (Del E. Webb Corp. v. Structural Materials Co.¿(1981) 123 Cal.¿ App. 3d 593, 604.) But this does not include contentions; deductions; conclusions of fact or law alleged in the complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice.¿ (Blank,¿supra, 39 Cal. 3d at p. 318.)¿¿¿¿¿¿

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Meet and Confer¿¿¿¿¿

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As with demurrers and motions to strike, and subject to enumerated exceptions, the parties¿are required to¿meet and confer prior to filing a motion for judgment on the pleadings.¿(CCP § 439, § 430.41, § 435.)

Here, the parties met and conferred via telephone on February 4, 2026. (Wang Decl. ¶¶ 5, 6.) This requirement is therefore met.

ANALYSIS:

Sixth Cause of Action – Fraudulent Inducement-Concealment

FCA contends judgment on the pleadings is appropriate because the fraud claim is time-barred on its face, fails to sufficiently state facts supporting the claim – including, who spoke on behalf of the corporate defendant, facts demonstrating a duty to disclose, superior or exclusive knowledge of an Engine Defect, or that FCA actively concealed this information at the time of sale. FCA further contends the claim is barred by the economic loss rule.[1]

Plaintiff did not file an opposition.

The elements for an action for fraud based on concealment are: "(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 868.) Suppression of a material fact is actionable only where there exists a duty to disclose, which may arise from a relationship between the parties, such as a buyer-seller relationship. (Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 843.)

Concealment claims are subject to the same specificity requirement as fraud claims, but plaintiffs are not required to plead how, when, where, to whom, and by what means a representation was made. (Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1356, 1384.) However, where a duty to disclose is premised on a relationship between the parties or on exclusive knowledge, the complaint must include specific allegations establishing: (1) the content of the omitted facts, (2) defendant's awareness of their materiality, (3) the inaccessibility of the facts to plaintiff, (4) the point at which the facts should or could have been revealed, and (5) justifiable and actual reliance. (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 43–44.)

Here, Plaintiff adequately alleges the existence of a material fact—an engine defect—that was not disclosed at the time of purchase. (Compl. ¶¶ 18, 19, 20.) As in Dhital, detailed engineering allegations are not required at the pleading stage where plaintiffs describe the nature of the defect and its manifestation. Plaintiff further alleges that FCA knew of the defect, that the information was not reasonably discoverable by consumers, that FCA actively concealed the defect during and after the sale, and that Plaintiff would not have purchased the Subject Vehicle had the defect been disclosed. (Compl. ¶¶ 21, 22, 23, 24.) These allegations are sufficient, at least for pleading purposes, as to concealment, materiality, reliance, and resulting damages.

The claim fails, however, because Plaintiff does not sufficiently allege that FCA owed a duty to disclose at the time of sale.

A duty to disclose may arise where imposed by statute; where the parties stand in a fiduciary or confidential relationship; where the defendant has exclusive knowledge of material facts not reasonably discoverable by the plaintiff; where the defendant makes partial representations that are misleading absent additional disclosure; or where the defendant actively conceals a material fact. (Rattagan, supra, 17 Cal.5th at p. 40.) Critically, the latter three categories presuppose a preexisting relationship between the parties, such as one arising from a contractual or transactional setting. (Ibid.)

Plaintiff alleges a contractual relationship with FCA based on express and implied warranties. (Compl. ¶¶ 10, 11.) However, the California Supreme Court has clarified that a vehicle manufacturer is not a party to the retail sales contract between a consumer and an independent dealership. (Ford Motor Warranty Cases (2025) 17 Cal.5th 1122, 1128.) The manufacturer's warranties are independent of the sales contract and arise by statute upon delivery of the vehicle. (Id. at p. 1135.) Because the warranties come into existence upon sale, they do not establish a preexisting transactional relationship between FCA and Plaintiff sufficient to impose a duty to disclose under Rattagan.

Nor does the complaint allege that the selling dealership acted as FCA's agent, or that FCA participated in or controlled the sales transaction. This case is therefore distinguishable from Dhital, where the plaintiffs expressly alleged that the manufacturer's authorized dealerships were its agents "for purposes of the sale of Nissan vehicles to consumers," and the court relied on those agency allegations in concluding a sufficient buyer-seller relationship had been pled at the pleading stage. (Dhital, supra, 84 Cal.App.5th at p. 844.) No comparable agency allegations are made here.

As presently alleged, FCA's relationship to Plaintiff is indistinguishable from its relationship with the public at large—namely, that any purchaser of a new FCA vehicle receives a manufacturer's warranty. Such a generalized relationship is insufficient to create the direct transactional nexus required to impose a duty to disclose. (Rattagan, supra, 17 Cal.5th at pp. 40–41.)

Although Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276 recognized that a sufficiently misleading affirmative representation or direct consumer advertising might, in some circumstances, give rise to a duty to disclose even absent a close transactional relationship, the complaint contains no allegations that FCA made specific affirmative misrepresentations to Plaintiff or directly advertised in a manner that would trigger such an exception.

Therefore, Plaintiff has not adequately alleged that FCA owed a legal duty to disclose the alleged defect at the time of sale. Without such a duty, the concealment claim cannot stand.[2]
This is a curable defect, however.

Accordingly, the court GRANTS FCA's motion for judgment on the pleadings with leave to amend.

CONCLUSION:

For
the foregoing reasons, the Court decides the pending motion as follows:

1. Motion
for judgment on the pleadings is GRANTED;

2. Plaintiff
shall file their amended pleading within 7 days of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 9, 2026 ___________________________________ Upinder
S. Kalra

Judge
of the Superior Court

[1]
The court rejects this argument. (Dhital
v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 840 [because the
economic loss rule does not bar fraudulent concealment-inducement claims.])

[2]
With this result, the court declines to develop the statute of limitations
argument.